

26STCP01608 26STCP01608

County: los-angeles

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Case Number: 26STCP01608 Hearing Date: July 28, 2026 Dept: 731

[TENTATIVE] ORDER RE: PETITIONER'S

MOTION TO COMPEL ARBITRATION PURSUANT TO INSURANCE CODE SECTION 11580.2(f)

Moving Party: Petitioner, Aram Djavadian

Opposing Party: Respondent, Mobilias Insurance Company of Arizona

Notice: OK

Background Facts

On April 23, 2026, Petitioner Aram

Djavadian ("Petitioner") initiated this action pursuant to a petition seeking assignment of a case number and a hearing on a petition to compel arbitration between the parties in this uninsured motorist dispute pursuant to Insurance Code section 11580.2, subdivision (f).

Now before the Court is Petitioner's petition to compel arbitration and appoint arbitrator, to which Mobilias has filed a partial non-opposition, and Petition has filed a reply.

Petition to Compel

Arbitration and Appoint Arbitrator

a.

Legal Standard

Pursuant to Code of Civil Procedure

§1281.2, generally, on a petition to compel arbitration, the court must grant the petition unless it finds that (1) no written agreement to arbitrate exists, (2) the right to compel arbitration has been waived, (3) grounds exist for revocation of the agreement, or (4) litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues.

“If [an] arbitration agreement

provides a method of appointing an arbitrator, that method shall be followed.

If the arbitration agreement does not provide a method for appointing an arbitrator, the parties to the agreement who seek arbitration and against whom arbitration is sought may agree on a method of appointing an arbitrator and that method shall be followed. In the absence of an agreed method, or if the agreed method fails or for any reason cannot be followed, or when an arbitrator appointed fails to act and his or her successor has not been appointed, the court, on petition of a party to the arbitration agreement, shall appoint the arbitrator.

When a petition is made to the

court to appoint a neutral arbitrator, the court shall nominate five persons from lists of persons supplied jointly by the parties to the arbitration or obtained from a governmental agency concerned with arbitration or private disinterested association concerned with arbitration. The parties to the agreement who seek arbitration and against whom arbitration is sought may within five days of receipt of notice of the nominees from the court jointly select the arbitrator whether or not the arbitrator is among the nominees. If the parties fail to select an arbitrator within the five-day period, the court shall appoint the arbitrator from the nominees.”

(Code Civ. Proc., § 1281.6.)

b. Parties'

Parties

Here, Plaintiff petitions for an

order compelling arbitration of the parties' insurance coverage dispute and appointing an arbitrator. As to compelling arbitration, Plaintiff argues that:

(1) the controversy is ripe for adjudication in arbitration; and (2) Mobilias' argument against arbitration to date—i.e., that “Petitioner's claim for occupational accident benefits with Blue Star pursuant to Business & Professions Code section 7455 constitutes a workers' compensation claim

preclusive of arbitration under Insurance Code section 11580.2(f))” (Petition, p. 7)—is incorrect for four distinct reasons.

In its opposition, Mobilitas clarifies that it has since changed its position on arbitration given that, as raised in Petitioner's moving papers, Petitioner's occupational insurance claim has been resolved. Mobilitas, however, argues that this Court should confine its order to compelling the action into arbitration and appointing Jake Courtney (the parties' chosen arbitrator) as arbitrator, and not rule on the question of whether Petitioner's proceeds from his occupational insurance claim offset the underinsured motorist claim against Mobilitas, with Mobilitas claiming an offset here.

In reply, Petitioner argues that this Court should not only grant this motion as unopposed and confirm Jake Courtney as arbitrator, but also make a legal determination that occupational accident insurance does not result in proceeds arising from “any worker's compensation laws,” and that the arbitrator is not confined to only awarding general damages in arbitration—two points that Petitioner claims remain outstanding by the parties and can only be resolved by this Court.

c. Discussion

The parties no longer dispute that this matter should proceed to arbitration pursuant to Insurance Code section 11580.2. Mobilitas expressly does not oppose an order compelling arbitration and agrees that Jake Courtney should be appointed as arbitrator.

Because there is no dispute regarding the existence of the arbitration agreement, waiver, revocation, or any other statutory basis for denying arbitration, the petition is properly granted.

Petitioner further requests that the Court determine, as a matter of law, that:

occupational accident insurance benefits are not
benefits arising under a workers' compensation

law

and therefore do not offset any recovery under Insurance Code section 11580.2;
and

The arbitrator is
authorized to determine all legally recoverable damages and is not limited
to

general damages.

The
Court declines to decide these issues in the present proceeding. The additional
questions

presented
by Petitioner concern substantive issues that may arise during or following the
arbitration.

Resolution
of those issues is unnecessary to the disposition of the petition presently
before the

Court.
Courts generally do not issue advisory opinions or decide legal questions
unnecessary to the

determination
of the pending proceeding.

Accordingly,
the Court expresses no opinion concerning the merits of the parties' respective

positions regarding offsets, the
interpretation of Insurance Code section 11580.2, or the categories of

damages
recoverable in arbitration. Those issues may be presented in an appropriate
proceeding if and

when
they become ripe for judicial determination.

d.

Conclusion

The

Petition to Compel Arbitration is GRANTED.

Pursuant

to Code of Civil Procedure sections 1281.2 and 1281.4, the parties are ordered
to

proceed

to arbitration, and this action is STAYED pending completion of the
arbitration.

Pursuant

to Code of Civil Procedure section 1281.6, Jake Courtney is appointed as the

arbitrator, consistent with the parties' agreement.

The

Court declines to make the additional legal determinations requested by Petitioner
regarding

the effect of occupational accident insurance benefits or
the scope of damages recoverable in

arbitration, without prejudice to the parties raising those
issues in an appropriate proceeding

should they become ripe.

Petitioner shall give notice.

Parties who intend to submit

on this tentative must send an email to the court at indicating intention to submit on the tentative
as directed by the instructions provided on the court website at www.lacourt.org. If
the department does not receive an email indicating the parties are submitting
on the tentative and there are no appearances at the hearing, the motion may be
placed off calendar. If a party

submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.